

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Clerk Notice Rejecting Untimely Rehearing Petition Tender rejected

Issued June 30, 2026.

The clerk received Leora Benton's tendered petition for panel rehearing and rehearing en banc on June 30, 2026. The court entered its opinion and judgment on June 15. The fourteen-day period for a rehearing petition expired on June 29. The docket contains no order extending or reopening that period, and the tender identifies no earlier receipt by the clerk. The submission is therefore untimely and is rejected rather than accepted for filing.

The clerk will retain the tender and this notice as administrative materials showing receipt and disposition. The tender will not be entered as an accepted rehearing petition, distributed to the panel for merits consideration, or treated as satisfying the June 29 deadline. This notice expresses no view on the arguments concerning the Wynn declaration. It records only that a June 30 tender cannot be processed as a timely petition from the June 15 judgment on the circumstances shown.

Counterfactual Clerk Notice Rejecting Untimely Rehearing Petition

Docket consequence and service

Because the tender was not accepted, it does not create a pending rehearing matter and does not establish a later mandate date based on disposition of rehearing. The clerk shall continue to calculate post-judgment events from the accepted filings and orders on this docket. Any mandate action remains subject to the governing rules and any qualifying order actually entered; this administrative notice itself neither issues mandate nor adjudicates a request to stay or shorten it.

The clerk shall serve this notice electronically on counsel for Benton and Blue Cedar on June 30, 2026. The copy supplied to Benton will include the received submission so counsel can verify which document was rejected. No response from Blue Cedar is required, no merits vote has occurred, and no rehearing petition is pending. A request for judicial relief, if one is available, must be made through a procedure authorized by the applicable rules and may not be inferred from retention of the rejected tender.